

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4824**

A bill to amend 1998 PA 58, entitled
"Michigan liquor control code of 1998,"
by amending sections 105 and 1115 (MCL 436.1105 and 436.2115),
section 105 as amended by 2025 PA 66 and section 1115 as amended by
2010 PA 213, and by adding section 604.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 105. (1) "Alcohol" means the product of distillation of
2 fermented liquid, whether or not rectified or diluted with water,
3 but does not mean ethyl or industrial alcohol, diluted or not, that
4 has been denatured or otherwise rendered unfit for beverage
5 purposes.

6 (2) "Alcohol vapor device" means ~~any~~**a** device that provides
7 for the use of air or oxygen bubbled through alcoholic liquor to



1 produce a vapor or mist that allows the user to inhale this
2 alcoholic vapor through the mouth or nose.

3 (3) "Alcoholic liquor" means any spirituous, vinous, malt, or
4 fermented liquor, powder, liquids, and compounds, whether or not
5 medicated, proprietary, or patented, and by whatever name called,
6 containing 1/2 of 1% or more of alcohol by volume that are fit for
7 use for food purposes or beverage purposes as defined and
8 classified by the commission according to alcoholic content as
9 belonging to 1 of the varieties defined in this chapter.

10 (4) "Alternating proprietorship" means 1 of the following:

11 (a) An arrangement in which 2 or more wine makers or small
12 wine makers take turns using the same space and equipment to
13 manufacture wine under section 603(9)(a) and in accordance with 27
14 CFR 24.136.

15 (b) An arrangement in which 2 or more brewers or micro brewers
16 take turns using the same space and equipment to manufacture beer
17 under section 603(9)(b) and in accordance with 27 CFR 25.52.

18 (c) An arrangement in which 2 or more distillers or small
19 distillers take turns using the same space and equipment to
20 manufacture spirits under section 603(9)(c) and in accordance with
21 27 CFR 19.141.

22 (d) An arrangement in which 2 or more mixed spirit drink
23 manufacturers take turns using the same space and equipment to
24 manufacture mixed spirit drink under section 603(9)(d) and in
25 accordance with 27 CFR 19.141.

26 (5) "Approved tasting room" means a tasting room that is
27 approved by the commission. A licensee with an approved tasting
28 room is not a retail licensee as that term is used in this act and
29 the rules promulgated under this act except for sections 701, 801,



1 803, 815, 905, and 906.

2 (6) "Authorized distribution agent" means a person approved by
3 the commission to do 1 or more of the following:

4 (a) To store spirits owned by a supplier of spirits or the
5 commission.

6 (b) To deliver spirits sold by the commission to retail
7 licensees.

8 (c) To perform any function needed to store spirits owned by a
9 supplier of spirits or by the commission or to deliver spirits sold
10 by the commission to retail licensees.

11 (7) "Bar" means a barrier or counter at which alcoholic liquor
12 is sold to, served to, or consumed by customers.

13 (8) "Beer" means either of the following:

14 (a) A beverage obtained by alcoholic fermentation of an
15 infusion or decoction of barley, malt, hops, sugar, or other cereal
16 in potable water that contains at least 0.5% of alcohol by volume.

17 (b) A beverage obtained by alcoholic fermentation of an
18 infusion or decoction of barley, malt, hops, or other cereal in
19 potable water that contains less than 0.5% of alcohol by volume,
20 including a beverage that contains 0.0% of alcohol by volume.

21 (9) "Bottle" or "bottling" means a process, separate from
22 manufacturing, using owned or leased equipment to fill and seal a
23 container, including a keg, with alcoholic liquor for sale at
24 wholesale or retail in accordance with this act. Bottle or bottling
25 does not include filling a growler for sale at retail.

26 (10) "Brand" means any word, group of words, letter, group of
27 letters, symbol, group of symbols, or combination of any word,
28 name, group of letters, symbol, or trademark adopted and used by a
29 supplier, to name, identify, or trademark a specific beer, malt



1 beverage, wine, mixed wine drink, or mixed spirit drink product. A
2 supplier's legal name, assumed name, or trade name, or any doing-
3 business-as name used by the supplier is considered a brand name,
4 identifier, or trademark if it is used in a manner that is
5 prominently featured on the container or packaging of the beer,
6 wine, mixed wine drink, or mixed spirit drink to market the product
7 and to identify the product, except under either of the following
8 circumstances:

9 (a) The use of the legal name, assumed name, trade name, or
10 doing-business-as name is not considered a brand name, identifier,
11 or trademark if it is not prominently featured on the container or
12 packaging of the beer, wine, mixed wine drink, or mixed spirit
13 drink.

14 (b) The use of the legal name, assumed name, trade name, or
15 doing-business-as name is not considered a brand name, identifier,
16 or trademark if it is used solely for any of the following
17 purposes:

18 (i) Identifying the supplier that manufactured the beer, wine,
19 mixed wine drink, or mixed spirit drink.

20 (ii) Identifying the supplier that has bottled the beer, wine,
21 mixed wine drink, or mixed spirit drink.

22 (iii) Identifying the supplier that has imported the beer, wine,
23 mixed wine drink, or mixed spirit drink.

24 (11) "Brand extension" means any beer, wine, mixed wine drink,
25 or mixed spirit drink brand that is marketed, in any manner, using
26 the same name, identifier, or trademark associated with a brand
27 that has preceded it in being sold or offered for sale in this
28 state, or a derivative or portion of the name, identifier, or
29 trademark, and that would lead a reasonable person to recognize its



1 relationship to an existing brand, regardless of any of the
2 following:

3 (a) The addition of words or letters in a word.

4 (b) The addition of a name, identifier, or trademark.

5 (c) The addition of a symbol.

6 (d) Any differences in the packaging, formulation, or
7 production of the beer, wine, mixed wine drink, or mixed spirit
8 drink or the shape, size, or type of container in which the beer,
9 wine, mixed wine drink, or mixed spirit drink is sold.

10 (e) Changes in the alcohol category used in the brand
11 extension. As used in this subdivision only, "alcohol category"
12 means a beer category, a wine category, a mixed wine drink
13 category, or a mixed spirit drink category.

14 (f) The manufacturer, importer, or licensed outstate seller of
15 the brand extension being different from the manufacturer,
16 importer, or licensed outstate seller of the underlying brand the
17 extension is based on.

18 (12) "Brandy" means an alcoholic liquor as defined in former
19 27 CFR 5.145.

20 (13) "Brandy manufacturer" means a wine maker or a small wine
21 maker licensed under this act to manufacture brandy. A wine maker
22 or small wine maker authorized to manufacture brandy shall not
23 manufacture any other spirits. The commission may approve a brandy
24 manufacturer to sell brandy that it manufactures at retail in
25 accordance with section 537.

26 (14) "Brewer" means a person located in this state that is
27 licensed to manufacture beer and sell at retail in accordance with
28 section 537 and to licensed wholesalers beer manufactured by the
29 person.



1 (15) "Brewpub" means a license issued in conjunction with a
2 class C, tavern, class A hotel, or class B hotel license that
3 authorizes the person licensed with the class C, tavern, class A
4 hotel, or class B hotel license to manufacture and brew not more
5 than 18,000 barrels of beer per calendar year in this state and
6 sell at its licensed premises the beer produced for consumption on
7 or off the licensed brewery premises in the manner provided for in
8 sections 405, 407, and 537.

9 (16) As used in subsection (10), "supplier" means a brewer, a
10 micro brewer, an outstate seller of beer, a wine maker, a small
11 wine maker, an outstate seller of wine, a manufacturer of a mixed
12 wine drink, an outstate seller of a mixed wine drink, a mixed
13 spirit drink manufacturer, and an outstate seller of a mixed spirit
14 drink.

15 (17) With regard to subsections (10) and (11), distribution
16 rights in effect on ~~the effective date of the amendatory act that~~
17 ~~added this subsection~~ **December 23, 2025** are preserved. However,
18 this subsection does not limit application of subsection (11) to a
19 beer, wine, mixed wine drink, or mixed spirit drink that would be
20 considered a brand extension after ~~the effective date of the~~
21 ~~amendatory act that added this subsection~~ **December 23, 2025** that is
22 based on a brand that was in existence before ~~the effective date of~~
23 ~~the amendatory act that added this subsection~~ **December 23, 2025**.

24 **Sec. 604. A supplier that registers a multibranded product**
25 **with the commission shall appoint the wholesaler or wholesalers**
26 **that have rights to the supplier's underlying brand. As used in**
27 **this section, "multibranded product" means any beer, wine, mixed**
28 **wine drink, or mixed spirit drink that includes 2 or more brands of**
29 **different suppliers.**



1 Sec. 1115. (1) A licensee ~~who~~**that** elects to sell spirits or
2 mixed spirit drink between the hours of 12 noon on Sunday and 2
3 a.m. on Monday under section 1113 shall not do so until ~~he or she~~
4 **the licensee** first obtains a permit and pays to the commission an
5 additional fee in the amount of 15% of the fee charged for the
6 issuance of ~~his or her~~**the licensee's** license.

7 (2) The revenue received from subsection (1) for the sale of
8 spirits or mixed spirit drink between 12 noon on Sunday and 2 a.m.
9 on Monday ~~shall~~**must** be deposited with the state treasurer in a
10 special fund to be used only by the department of ~~public health~~ **and**
11 **human services** in programs for the treatment of alcoholics. Any
12 other revenue resulting from the additional \$160.00 license fee as
13 described in section 1114 for sales of alcoholic liquor permitted
14 under sections 1111 and 1113 ~~shall~~**must** be deposited into the
15 general fund.

16 (3) In addition to any interest and earnings deposited under
17 this subsection, \$680,000.00 of the money in the special fund
18 described in subsection (2) is transferred to and must be deposited
19 into the general fund each fiscal year.

20 (4) This section does not apply after September 30, 2029.